

SENATE No. 1665

The Commonwealth of Massachusetts

PRESENTED BY:

Sal N. DiDomenico

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act regulating access to the disclosure of certain police reports.

PETITION OF:

NAME:

Sal N. DiDomenico

DISTRICT/ADDRESS:

Middlesex and Suffolk

SENATE No. 1665

By Mr. DiDomenico, a petition (accompanied by bill, Senate, No. 1665) of Sal N. DiDomenico for legislation relative to the disclosure of certain police reports. Public Safety and Homeland Security.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1503 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act regulating access to the disclosure of certain police reports.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 41 of the General Laws is hereby amended by striking out section 97D, as
2 appearing in the 2022 Official Edition, and inserting in place thereof the following section:-

3 Section 97D. Reports of rape or sexual assault or attempts to commit such offenses,
4 reports of abuse committed by family or household members, as defined in section 1 of chapter
5 209A, and communications between police officers and the victims of such offenses or abuse
6 shall not be public records and shall be maintained by police departments in a manner that will
7 ensure their confidentiality; provided, however, that these reports and communications shall be
8 accessible at all reasonable times, upon written request, to: (i) the victim, the victim's attorney,
9 other persons specifically authorized by the victim to obtain this information, prosecutors and (ii)
10 victim-witness advocates, as defined in section 1 of chapter 258B, domestic violence victims'

counselors, as defined in section 20K of chapter 233, and sexual assault counselors, as defined in section 20J of chapter 233, if this access is necessary in the performance of their duties, and shall be accessible at all reasonable times, upon written, telephonic, facsimile or electronic mail request, to: (iii) law enforcement officers, district attorneys, assistant district attorneys and officials authorized to admit persons to bail under section 57 of chapter 276.

If a police department receives a request from an advocate or counselor not known to be specifically authorized to obtain this information, it shall make a reasonable attempt to notify the victim.

A violation of this section shall be punished by imprisonment for not more than 1 year or by a fine of not more than \$1,000, or both."